Life v. Dignity

Two Types of Defenses: Negative & Positive

Negative Defenses

The prosecution fails to prove an element of the crime beyond a reasonable doubt.

We've been dealing with this all semester

Affirmative Defenses

Every element is proven beyond a reasonable doubt, but the defendant's act is nevertheless *justified* or *excused*.

Justifications (self-defense and necessity)

- the defendant did the right thing in a difficult situation

Excuses (duress, involuntary intoxication, insanity)

- the defendant's behavior is not socially desirable, but the defendant should not be blamed

Self Defense

Self Defense: The defendant must honestly and reasonably believe lethal force is necessary to repel an imminent threat of death or great bodily harm.
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The Reasonable Person

An Outlier: East Dakota

How does the doctrine in East Dakota differ from the standard doctrine?

Bernard Goetz

§ 35.15 (2)

A person may not use deadly physical force upon another person under circumstances specified in subdivision one unless (a) He reasonably believes that such other person is using or about to use deadly physical force [...] or (b) He reasonably believes that such other person is committing or attempting to commit a kidnapping, forcible rape, forcible sodomy or robbery”

§ 160.00 Robbery; defined.

Robbery is forcible stealing. A person forcibly steals property and commits robbery when, in the course of committing a larceny, he uses or threatens the immediate use of physical force upon another person [...]

Imperfect Self-Defense

An honest but *unreasonable* belief

From the Civil Trial

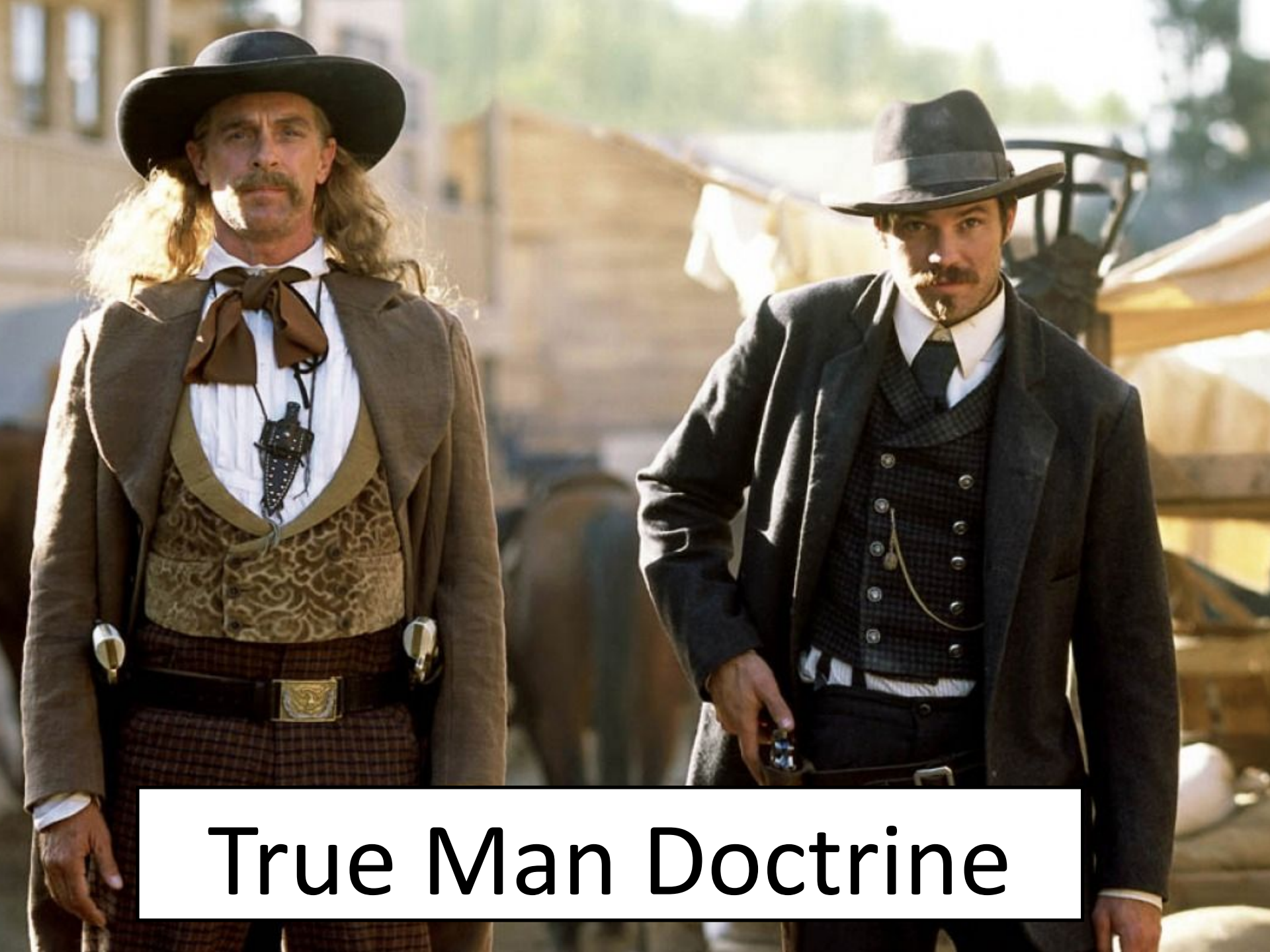
Defendant Goetz presented evidence that the youths approached Goetz because, as one of them put it,

> "He looked like easy bait."

From the Civil Trial

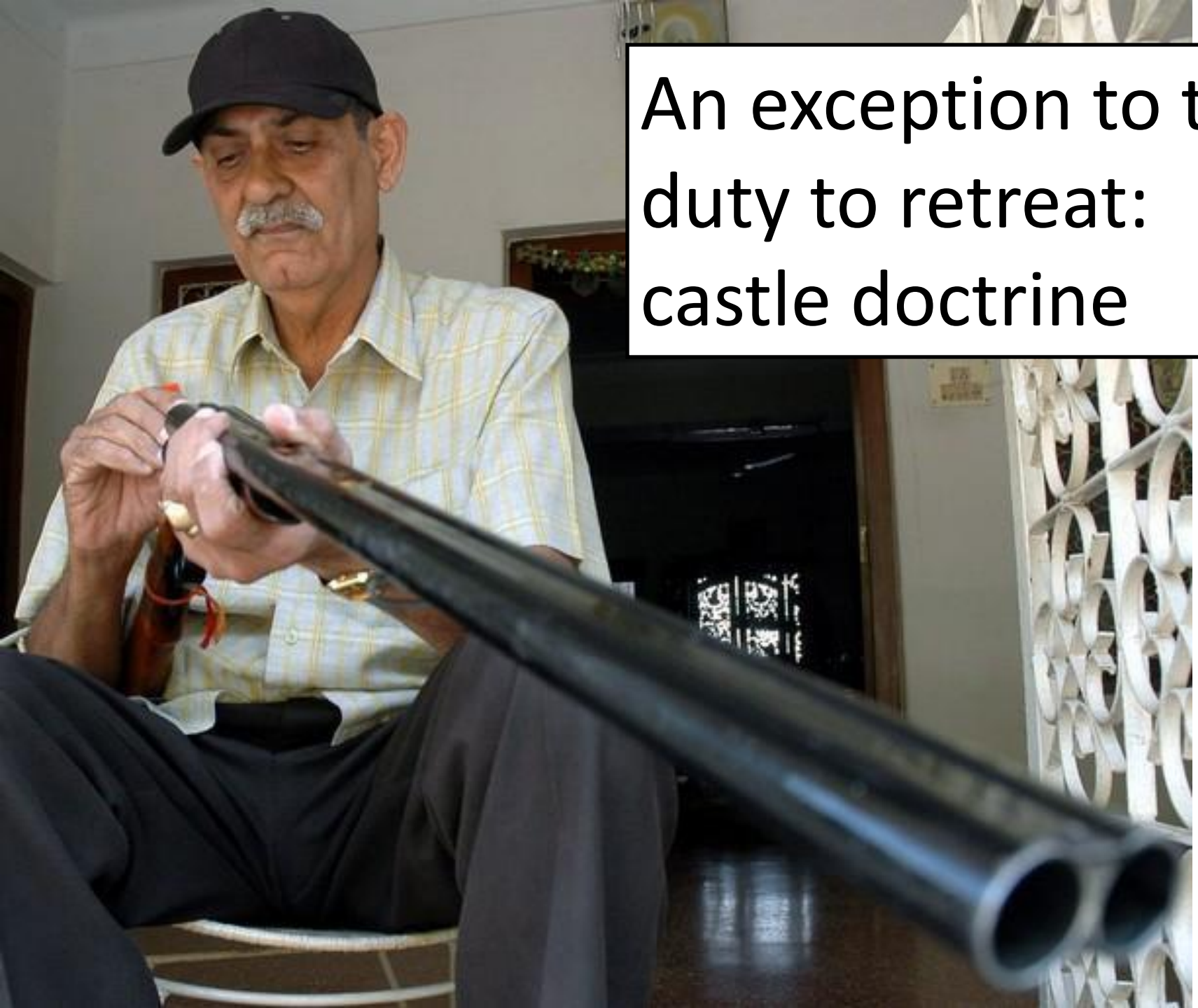
Plaintiffs presented evidence that, at a meeting among residents in his Manhattan apartment building in 1980, Mr. Goetz said:

> “The only way you're going to clean up these streets is to get rid of spics and niggers.”

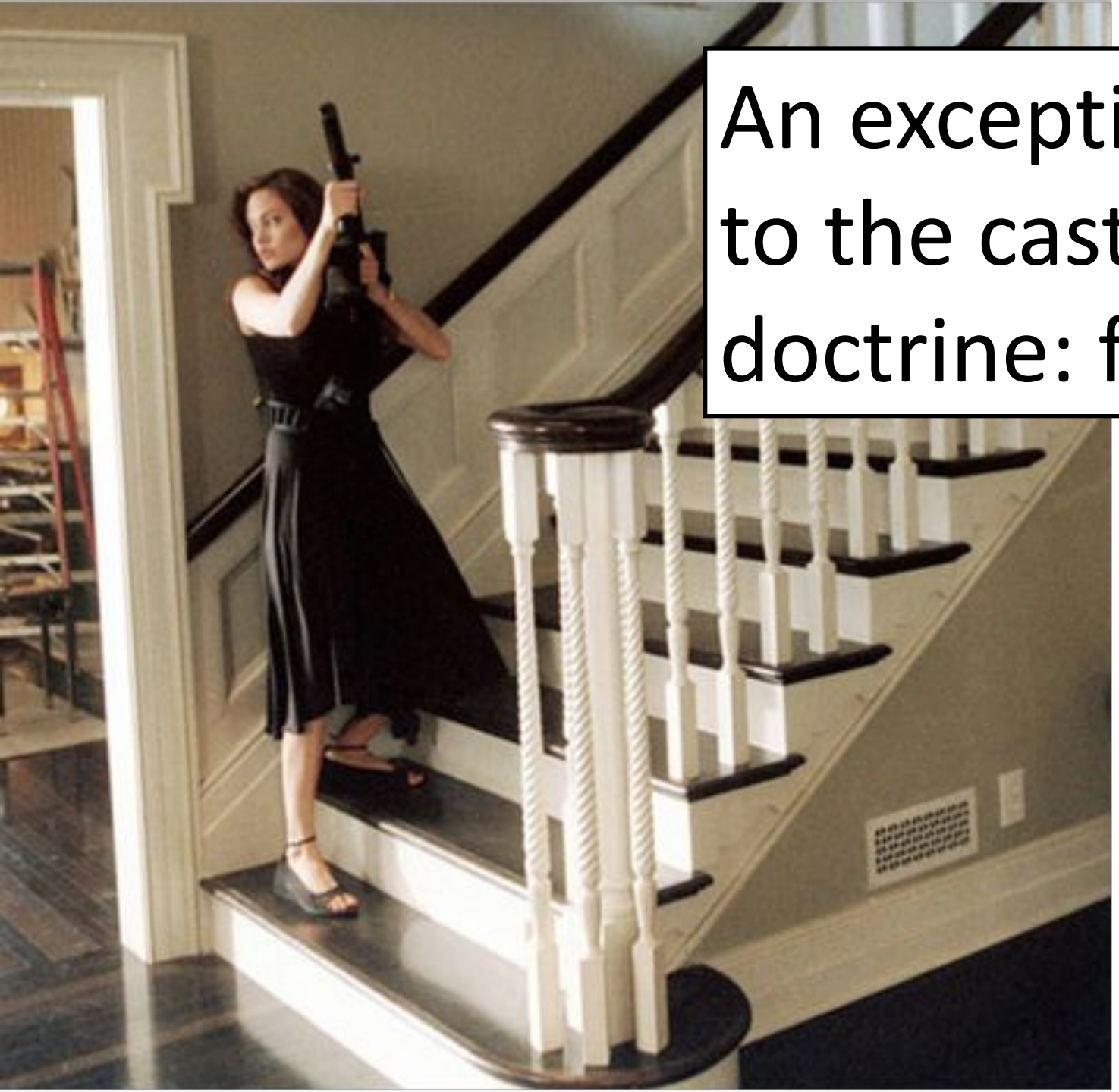


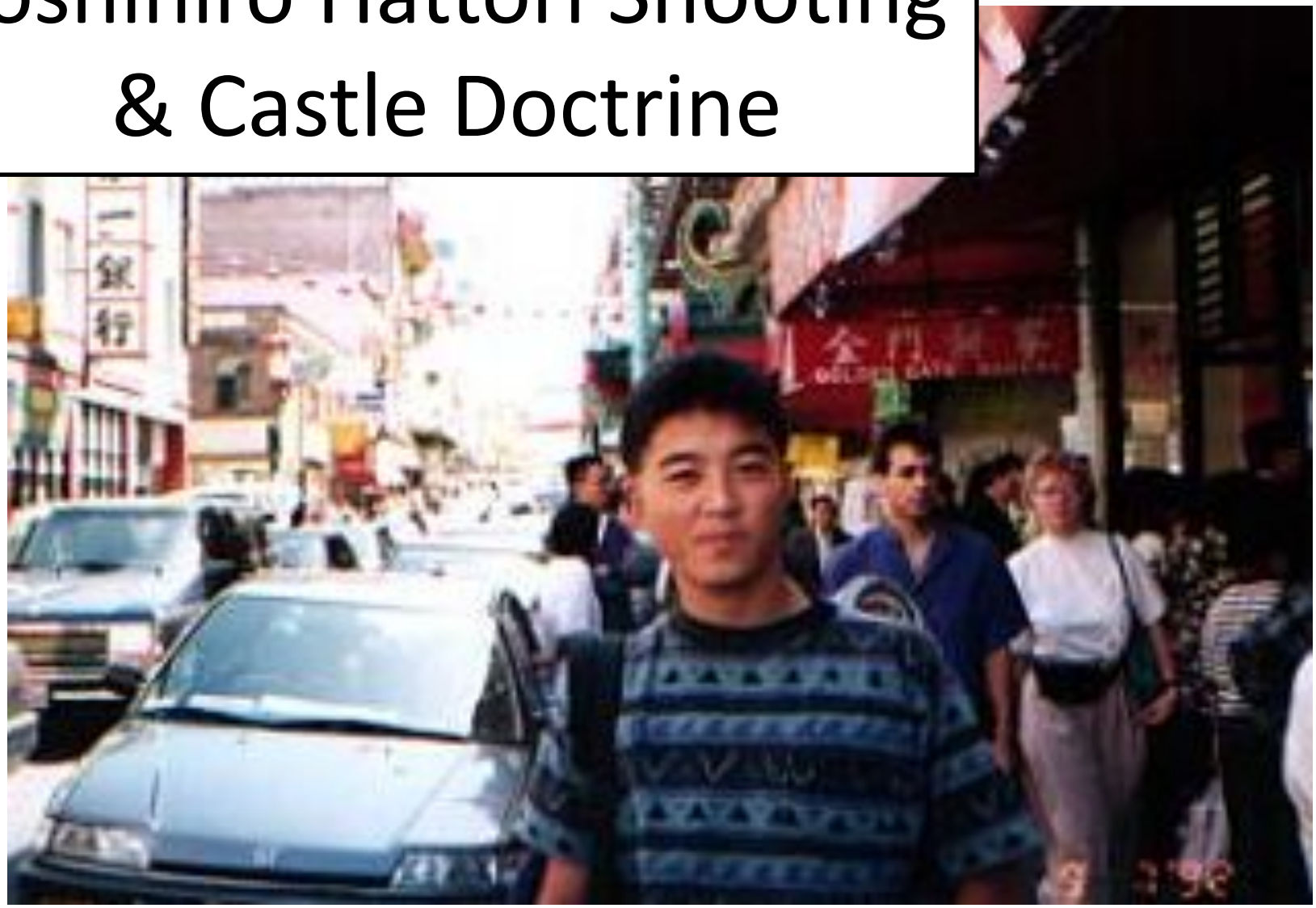
True Man Doctrine

Duty to Retreat



An exception to the duty to retreat: castle doctrine



An exception to the castle doctrine: family

Yoshihiro Hattori Shooting & Castle Doctrine